

#	Case Name	Tentative Ruling
101	Ahmed v. Lorenzana, 2025-01453224	MOTION TO QUASH SERVICE OF SUMMONS – DENIED AS MOOT After the filing of Defendant Erika Noelani Lorenzana’s Motion to Quash Service of the Summons and Complaint, Plaintiff filed a new proof of service indicating that Defendant was personally served with the summons and complaint on 12/20/25 by a registered process server. (ROA 31.) Filing a proof of service that complies with the applicable statutory standards creates a rebuttable presumption that service was proper. (<i>Floveyor Int’l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795; <i>American Exp. Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.) Further, a declaration of service by a registered process server establishes a presumption that the facts stated in the declaration are true. (Evid. Code § 647; <i>Rodriguez v. Cho</i> (2015) 236 Cal.App.4th 742, 750.) Accordingly, the Court finds that Defendant’s motion, which is based on a prior attempt at service (see ROA 25), is moot. The clerk shall give notice of this ruling.
102		
103	Butler v Equinox, 2024-01444716	MOTION FOR SUMMARY JUDGMENT – DENIED Plaintiff Monique Butler sued Defendants Equinox and David Mounce for negligence and premises liability, based on an incident where Plaintiff slipped and fell in the Equinox spa after allegedly seeing a cockroach. Defendants move for summary judgment based on the release allegedly signed by Plaintiff. Defendants did not allege release as an affirmative defense in their answer to Plaintiff’s complaint. (ROA

#16) A release is an affirmative defense. “The defendant bears the burden of raising the defense and establishing the validity of a release *as applied to the case at hand*.” (*Eriksson v. Nunnink* (2011) 191 Cal.App.4th 826, 856.) Having failed to allege this as an affirmative defense, it cannot be a basis for summary judgment.

Even if the affirmative defense of release was properly before the court, the court would find Plaintiff has established the existence of a disputed issue of material fact. Plaintiff argues that Defendants failed to meet their threshold burden of establishing that Plaintiff signed any waiver. First, Plaintiff testified that the “signature” on the Membership Agreement is not hers. (PUMF # 8, PCOE, Ex. 2, Plaintiff Depo at pp. 22:3–24:23.) Further, she testified that she does not recall ever signing the Membership Agreement. (PUMF # 9.) When asked “you’re saying that this is not a membership that you signed?”, Plaintiff responded, “So I don’t recall the form at all, because that’s not a signature and that’s not how I would write my name. So if I did sign an agreement, I would have to see my signature.” (Ex. 2, Plaintiff Depo at p. 24:20-24.) Indeed, the purported “signature” is nothing more than Plaintiff’s name typed onto the form, and it bears no date, leaving Defendants unable to establish even when she would have purportedly signed the document.

Further, the typed entry is irreconcilable with Equinox’s own signing procedures: the PMQ testified that a signature captured on an iPad “would be a wet signature,” drawn with a finger or stylus, not typed text. (PUMF # 12, PCOE, Ex. 5, Equinox PMQ Depo at pp. 186:1–7; 186:19–23.) No evidence was presented as to what kind of device was used to capture the signature (whether by Ipad, desktop, etc.). Declarant Mounce simply states, the signature was obtained from IP

Adress 10.200.4.109. (Decl. of Mounce ¶5.)

Further, the Membership Agreement submitted as Ex. 2 has a start date of 12/19/2022 and an end date of 12/19/2023. The incident here occurred on May 26, 2024. Defendants offer no evidence regarding a new agreement or an extension of the existing agreement

		The court denies the request to construe the motion for summary judgment of the entire complaint as a motion for judgment on the pleadings of a single cause of action on the ground the two causes of action are duplicative. The court need not rule on Plaintiff's objections to Defendants' evidence. Plaintiff to give notice.
--	--	--

104	Chan v. Blue Ray Aquatics, 2025-01524694	MOTION TO APPEAR PRO HAC VICE – DENIED WITHOUT PREJUDICE The unopposed application of attorney David A. DuBois to appear pro hac vice on behalf of Defendant Blue Ray Aquatics, LLC is DENIED WITHOUT PREJUDICE. Moving Attorney met the requirements of California Rules of Court, rule 9.40 <u>except</u> that Moving Attorney did not: (1) state his residence pursuant to rule 9.40(d)(1), (2) establish proper service on the state Bar of California pursuant to rule 9.40(c)(1), and (3) state that he is not "[r]egularly engaged in substantial business, professional, or other activities in the State of California" pursuant to 9.40(a)(1), (a)(2), and (a)(3). The Court notes that Counsel need not provide his exact residence address but he must identify the state of his legal residence. This information is not provided in counsel's declaration. Moving attorney to give notice.
105	Dodds-Tsang v. Garden Grove Post Acute, 2025-01536667	MOTION TO COMPEL ARBITRATION – DENIED Plaintiff Yvette Dodds-Tsang sued Defendant Garden Grove Post Acute LLC ("Defendant") for elder abuse, willful misconduct, and medical malpractice/wrongful death in connection with the death of Plaintiff's mother, Ha Tu. All of Plaintiff's claims are asserted as survival